against the invader?'. He had no compunction in telling him that '[w]hether I agree with him or not, my heart is full of admiration for the courage and self-sacrifice of a man like Bhagat Singh' because '[c]ourage of the Bhagat Singh type is exceedingly rare' so '[i]f the Viceroy expects us to refrain from admiring this wonderful courage and high purpose behind it, he is mistaken'. In this way, the suave and urbane Nehru was able to justify the use of 'violence against the invader', which the Indian revolutionaries fighting for Indian freedom were deploying, but attracting so much opprobrium for, and not least from Gandhi. An appeal lay to the Privy Council in London. It was on a point of law only for what was a capital offence. Six days before the appeal was heard, Jawaharlal's father, Motilal Nehru, sent a message from Simla from his sick bed. On 6 February 1931, five days before the Privy Council hearing date, he quietly passed away. His petition pleading on behalf of the condemned men was not even admitted to a regular hearing by the Board of the Privy Council.

On a misty February morning in far-off London, a tenacious forty-four-year-old British lawyer, D.N. Pritt, disembarked from a taxi in Downing Street to appear before the Privy Council to plead against the death sentence on Bhagat Singh, Sukhdev and Rajguru. It was the last straw. Pritt knew he had an uphill struggle as the five-member panel of the Board of the Privy Council was not sympathetic. Educated at Winchester College, he had turned against the establishment. He was to go on to argue a string of revolutionary cases, from the Meerut Conspiracy Case in 1933 (for which his grateful clients gave him a silk gown which is still in his chambers in London), to Ho Chi Minh in 1932, to Jomo Kenyatta and the Mau Mau in 1952 (which is why there is today a 'Dennis Pritt Road' named in Nairobi after him). Highly respected, he could get away with saying things in the apex court which others could only have dreamt of. On one occasion when faced with a relentless judicial onslaught, he quipped: 'I will answer your Lordships's questions if I can have the courtesy of two minutes without interruption.' On another occasion, frustrated, he sniped at the court: 'It's apparent that your Lordships have not taken in a word I have been saying. I shall have to start again. May it please your Lordships'. Perhaps his most